

File No.: EXP202209161

RESOLUTION No.: R/00164/2023

Considering the complaint filed on July 4, 2022, with this Agency by A.A.A. (hereinafter the complainant), against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. (hereinafter the respondent), for not having duly attended to their request to exercise rights established in Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of Access against the respondent, and their request, as stated by the complainant, did not receive the legally established response.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was completed, the complaint was admitted for processing, and the respondent was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent, during the formalized procedures, has demonstrated to this Agency that they attended to the exercised right and sent the complainant the appropriate response to their request.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the GDPR; and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors about their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Likewise, the internal legal framework, in Article 65.4 of the LOPDGDD, has provided a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not appointed one, so that they can analyze these complaints and respond within one month.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for understanding that the complainant's claims were satisfied. Consequently, on October 4, 2022, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for

processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, in

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As a consequence, the decision regarding its initiation does not entail an obligation to commence a procedure in response to any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Furthermore, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: In the case analyzed here, the claimant exercised their right of Access regulated in Article 15 of the GDPR and Article 13 of the LOPDGDD. After the period established in accordance with the aforementioned regulations had elapsed, their request did not receive the legally required response. The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

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In this case, however, it is noted that during the processing of the complaint that gives rise to the present procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the data subject addressing the right or informing about the decision made regarding the request.

This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the present procedure aims to duly restore the guarantees and rights of the affected parties, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the data controller to carry out additional actions to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by A.A.A., against TELEFÓNICA MÓVILES ESPAÑA, S.A.U., with NIF A78923125. However, it is not appropriate for this entity to issue a new certification, as the response was issued late, without requiring the performance of additional actions by the data controller.

SECOND: NOTIFY this resolution to A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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